

- Plaintiff is **GRANTED** leave to amend. Leave is limited to pleading additional facts to support Plaintiff's punitive damages request.

Plaintiff shall file any amended complaint within 10 days of notice of entry of the order on this motion.

**7. 9:00 AM CASE NUMBER: C25-00713**  
**CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION**  
**HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT**  
**FILED BY: NEW PIPES INC**

**\*TENTATIVE RULING:\***

Before the Court is Defendant New Pipes, Inc.'s Demurrer to Second Amended Complaint.

Defendant filed and served its Demurrer and declaration in support on April 9, 2026. Thereafter, on April 14, it filed a three-part Request for Judicial Notice in support thereof. The unopposed RJN is **GRANTED**. Counsel is reminded that all papers supporting its motion should be filed and served together. (See e.g. Code of Civil Procedure § 1005(b).)

**Initial Considerations**

As pointed out by Defendants, Plaintiff's opposition memorandum exceeds ten pages but did not include a table of contents or table of authorities. "A memorandum that exceeds 10 pages must include a table of contents and a table of authorities." (Cal. R. Ct. 3.1113 (f).)

In addition, Plaintiff filed a declaration which attached four documents labeled as Exhibits A-D. "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The declaration did not include any bookmarks, much less ones with the required information.

Plaintiff is reminded to comply with all Rules of Court going forward.

**Procedural Background**

This matter relates to alleged improper repairs and construction impacting real property located at 8975 Alcosta Blvd., Unit 107, ("Property") which is within the Vintner Condominium Association.

Plaintiff filed the initial Complaint on March 13, 2025. The initial Complaint included Praveen Gupta and Wisdom Tree Properties, LLC as plaintiffs. Defendant Vintner Condominium Homeowners' Association ("Vintner") filed a demurrer on April 18, 2025. A basis for the demurrer was that the Complaint was uncertain as to who the proper plaintiff was and that if Wisdom Tree was properly a plaintiff that Mr. Gupta could not represent it given that he is not an attorney. The Court sustained the demurrer finding that the Complaint was uncertain as to what plaintiff owned the Property during the relevant time and the basis for the claims for damages.

Plaintiff filed the First Amended Complaint on September 15, 2025. The FAC alleged a total of nine causes of action. Five of those causes of action were alleged against moving Defendant New Pipes: Trespass (2nd CoA); Private Nuisance (3rd CoA); Negligence (4th CoA); Declaratory Relief (6th CoA); and Negligent Undertaking (9th CoA). Defendant New Pipes demurred to the Negligence, Declaratory Relief, and Negligent Undertaking causes of action as being uncertain and failing to allege sufficient

facts. New Pipes also raised standing concerns given that the FAC appeared to include claims on behalf of a trust which owned the Property during portions of the time at issue.

The Court sustained New Pipes' demurrer as to all causes of action based on the lack of standing. Plaintiff was given leave to amend. Given the lack of standing, the Court did not rule on New Pipes' other arguments.

Plaintiff filed the operative Second Amended Complaint on March 10, 2026. The SAC alleges four causes of action against New Pipes: Trespass (2nd CoA); Private Nuisance (3rd CoA); Negligence (4th CoA); and Negligent Undertaking (9th CoA). Thus, Plaintiff removed the declaratory relief cause of action against New Pipes but continues to assert the four other causes of action alleged in the FAC. New Pipes demurs to each of the four causes of action.

### **Legal Standard**

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

### **Analysis**

New Pipes makes several arguments as to how the SAC is defective. First, it argues that the trespass, nuisance, and negligence causes of action are time barred based on the applicable statutes of limitations. Second, it argues that the nuisance and negligent undertaking causes of action are barred as they were added without leave of court. Finally, New Pipes argues that the negligent undertaking cause of action is deficient because the SAC fails to state facts sufficient to constitute a cause of action – in that the plumbing installed by New Pipes does not constitute an 'undertaking.'

#### **Statute of Limitations**

"The defense of statute of limitations may be asserted by general demurrer if the complaint shows on its face that the statute bars the action." (*E-Fab, Inc. v. Accountants, Inc.* (2007) 153 Cal.App.4th 1308, 1315, citation omitted.) "There is an important qualification, however: 'In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.'" (*Id.* at 1315-16, quoting *McMahon v. Republic Van & Storage Co., Inc.* (1963) 59 Cal.2d 871, 874.) "The ultimate question for review is whether the complaint showed on its face that the action was barred by a statute of limitations, for only then may a general demurrer be sustained and a judgment of dismissal be entered thereon.'" (*Id.* at 1316 quoting *Moseley v. Abrams* (1985) 170

Cal.App.3d 355, 358.)

### **Trespass and Nuisance**

The parties focus their arguments on whether the SAC alleges a ‘permanent’ or a ‘continuing’ trespass/nuisance. As such, the Court will focus on those arguments.

### **Relevant Allegations**

“On or about October 25, 2021, New Pipes began plumbing work at the Vintner complex....” (¶ 12.) The work started without the proper permit. (*Ibid.*) The application for the permit was not filed until October 29, 2021 – four days later. (*Ibid.*) The permit described the installation of a “cold water line to kitchen and 1 hose bib through ceiling of unit.” (¶ 13.)

“The actual work performed was the installation of a HOA common-area water main bypass routed through the interior of Plaintiffs Unit – a materially different, more extensive, and far more intrusive scope of work.” (*Ibid.*) On December 6, Plaintiff served written notice on New Pipes (and the HOA) disputing the routing of the plumbing through the Property and objecting to the work. (¶ 14.) New Pipes did not cease or redirect the work. (*Ibid.*)

The City scheduled inspections of the work on November 30 and December 1, 2021. (¶ 15.) Both inspections resulted in ‘no-show’ failures because no New Pipes representative appeared. (*Ibid.*) On December 8, 2021, the inspection identified fire-caulking and related wall-construction deficiencies in the permit work. (¶ 16.) “Those deficiencies remained outstanding when HOA and New Pipes abandoned the work, and HOA refused to complete the required corrective repairs, instead requiring Plaintiff to undertake them.” (*Ibid.*)

“On December 14, 2021, the City inspector issued a “Partial Pass/Incomplete” result with the notation ‘Call for final when complete.’” (¶ 18.) “The required final inspection was never requested. The permit remained open and incomplete from that date forward.” (*Ibid.*) The permit expired on June 13, 2022, without a required final inspection or sign-off. (¶ 19.) The permit “has remained expired, open, and unfinished from June 13, 2022 through the date of this filing.” (*Ibid.*)

### **Permanent vs. Temporary Trespass/Nuisance**

New Pipes’ main argument is that the plumbing should be considered ‘permanent’ and as such, the statute of limitations should be deemed to commence when the encroachment began. Plaintiff counters that the plumbing is a ‘continuing’ trespass/nuisance and as such the statute of limitations has not run.

Initially, the Court notes that the law relating to trespass and nuisance – pertaining to the issue of permanence of the encroachment – overlaps and appears to use the same standard. As such, the Court will not differentiate between the two causes of action related to this issue.

The California Supreme Court long ago discussed the difference between a permanent and ‘temporary’ or ‘abatable’ encroachment. In *Kafka v. Bozio* (1923) 191 Cal. 746, the Court stated:

Where a trespass consists of a physical entry upon the lands of another and taking possession thereof under such circumstances as to indicate an intention that the trespass shall be permanent, the law may regard the wrong done in such case as complete at the time of the entry and allow recovery in a single action of all damages resulting therefrom, including prospective as well as past damages. ...

But where the wrong consists of an encroachment which was not willful but

unintentional, and which is abatable, the law does not presume that such an encroachment will be permanently maintained. The maintenance of such an encroachment is a continuing trespass or nuisance [citations], and every continuance thereof amounts to a new nuisance for which successive actions will lie. (*Id.* at 750-751.)

While the courts are clear that there are two primary classifications of trespass/nuisance, “[c]lear-cut distinctions between permanent and temporary nuisances are elusive at best.” (*Spar v. Pac Bell* (1991) 235 Cal.App.3d 1480, 1483.) As the *Spar* court observed, a notable treatise explained:

“Various rules or tests have been laid down for determining the classification of nuisances as permanent or temporary, but the distinctions between permanent nuisance and continuing or temporary nuisances are not always clearly delineated, and no short and all-inclusive rule or test has evolved. Rather, it seems that the cases must be decided in accordance with exact precedents rather than on principle. In many instances the distinction depends upon the particular facts, the measure of damages, whether the condition is negligently operated, or whether it is reasonably practicable for the condition to be abated.” (*Id.* at 1484 quoting 58 Am.Jur.2d, Nuisance, § 26, p. 688.)

The *Spar* court then went on to “review the legal precedents that have evolved in California jurisprudence” regarding this issue. (*Id.* at 1484-88.) It noted that cases “which have found the nuisance complained of to be ‘unquestionably permanent’ in nature have involved solid structures, such as a building encroaching upon the plaintiff’s land,” citing cases involving concrete piers extending across a boundary line, a steam railroad operating on plaintiff’s land, and a buried sewer line running through plaintiff’s property. (*Id.* at 1484.)

The *Spar* court summarized: “In cases of a permanent trespass or nuisance, the damages are complete when the nuisance comes into existence and plaintiff is required to bring one action for all past, present and future damages within three years after the permanent nuisance/trespass has occurred.” (*Id.* at 1485.)

“In contrast, the two primary characteristics of a continuing nuisance or trespass are: (1) the nuisance/trespass is abatable, and/or (2) the damages from the nuisance/trespass may vary over time. ‘[I]f an encroachment . . . is abatable, the law does not presume that such an encroachment will be permanently maintained.’” (*Ibid.*)

“In determining whether a nuisance/trespass is continuing in nature, a few cases emphasize the characteristic of whether the damages may vary over time.” (*Spar*, supra, 235 Cal.App.3d at 1485.) “Most cases, however, analyze the condition to determine whether the nuisance/trespass may be discontinued.” (*Ibid.*) “In fact, our Supreme Court had determined the crucial distinction between a permanent and continuing nuisance is whether the nuisance may be discontinued or abated at any time.” (*Ibid.* citing 5 California Supreme Court opinions.)

*Spar* was decided in 1991. Five years later the California Supreme Court reasserted: “[T]he crucial test of the permanency of a trespass or nuisance is whether the trespass or nuisance can be discontinued or abated.” (*Mangini v. Aerojet-General Corp.* (1996) 12 Cal.4th 1087, 1097.) The California Supreme Court also addressed the issue of “what does ‘abatable’ mean?” (*Id.* at 1098.) After a thorough analysis the Court “conclude[d] ‘abatable’ means that the nuisance can be remedied at a reasonable cost by a reasonable means.” (*Id.* at 1103.)

### Applicability to SAC

The only real description of what was installed in the Property that constitutes the trespass/nuisance is that New Pipes installed “a HOA common-area water main bypass routed through the interior of” the Property. (¶ 13.) During the process leading up to the installation, Plaintiff sent notice to New Pipes (and the HOA) that he ‘expressly disput[ed] the routing of plumbing through the Unit” and objected to the work. (¶ 14.)

There is no way for the Court to determine at this time via the SAC whether the plumbing “can be remedied at a reasonable cost by a reasonable means.” (*Mangini*, supra, 12 Cal.4th at 1097.) Multiple factors must be considered when trying to determine if a trespass/nuisance is abatable. “These considerations include such things as the feasible means of, and alternatives to, abatement, the time and expense involved, legitimate competing interests, and the benefits and detriments to be gained by abatement or suffered if abatement is denied.” (*Beck Development Co. v. Southern Pacific Transportation Co.* (1996) 44 Cal.App.4th 1160, 1220 quoting *Capogeannis v. Superior Court* (1993) 12 Cal.App.4th 668, 678.)

The need to weigh all the above factors is likely why, generally, the determination of “whether a trespass is continuing or permanent is a question of fact properly submitted to the jury.” (*McCoy v. Gustafson* (2009) 180 Cal.App.4th 56, 92.)

*Madani v. Rabinowitz* (2020) 45 Cal.App.5th 602, cited by New Pipes in its reply, is instructive. There, a fence was installed between two properties that was found to encroach on plaintiff’s property by approximately two feet. The fence was originally erected prior to 1979, and the original chain link fence was replaced with a wood fence – in the same location – in 2015. (*Id.* at 605-06.) Plaintiff purchased his property in 2000. In 2015, he commissioned a survey of the property which indicated that the fence encroached onto his property. (*Id.* at 606.) He filed suit in March 2016.

Defendant argued that the fence constituted a permanent encroachment as it had occupied the same space since prior to 1979 and was meant to be a permanent structure marking the boundary of the property and was installed with posts cemented into the ground. (*Id.* at 608.) He also argued that the fence did not have a repeated or varying impact on plaintiff’s property. (*Ibid.*)

The court discussed the difference between a permanent and continuing trespass – as outlined above. It noted the California Supreme Court’s holding in *Mangini* that a “trespass or nuisance is continuing if it ‘can be remedied at a reasonable cost by reasonable means.’” (*Id.* at 609.) In *Madani*, there was a bench trial where evidence was presented establishing that the fence could be moved for \$5-6,000. As such, the Court found that the expense to move the fence “is not sufficient ... to regard the fence as a permanent installation.” (*Ibid.*) As it was deemed a continuing trespass, plaintiff could bring an action “at any time to recover the damages which have accrued within the statutory period, although the original trespass occurred before that period.” (*Id.* at 608.)

While the *Madani* case dealt with an evidentiary showing sufficient to show an encroachment is permanent, it underscores the need for evidence related to the cost of removing the offending plumbing to be able to make that determination. That determination cannot be at this stage of the proceedings since a demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc. § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

“In order for the bar of the statute of limitations to be raised by demurrer, the defect must **clearly and affirmatively appear on the face of the complaint**; it is not enough that the complaint shows

merely that the action may be barred.” (*E-Fab, Inc.*, supra, 153 Cal.App.4th at 1315-16 emphasis added.) Based on the above, the Court cannot determine whether the trespass/nuisance alleged in the SAC constitutes a permanent or continuing event based on the pleadings. That issue is central to the statute of limitations dispute.

Accordingly, New Pipes’ demurrer to the Trespass and Private Nuisance causes of action is **OVERRULED**.

#### **Statute of Limitations – Negligence**

The Court notes that New Pipes demurred to the negligence cause of action based on the statute of limitations but did not demur to the negligent undertaking cause of action on that ground. (See Notice of Demurrer.) The Notice clearly states that the ground for the demur to the negligence claim is “because the cause of action is time barred under California Code of Civil Procedure section 338(c)(1).” The Notice of Demur does not use that wording with relation to the negligent undertaking cause of action. Instead, it only states that Plaintiff “fails to plead facts establishing” the claim. The memorandum also makes clear that New Pipe only asserts statute of limitations as to the negligence cause of action and not the negligent undertaking cause of action. (Compare sections III D and III E.)

The analysis for the negligence cause of action is different from that of the trespass/nuisance claims as it does not rely upon the determination of the plumbing being considered permanent or continuing. As the court in *Cyr v. McGovran* (2012) 206 Cal.App.4th 645 explained:

“To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the ‘gravamen’ of the cause of action. [Citations.]” (*Thomson v. Canyon* (2011) 198 Cal.App.4th 594, 606[.]) Where negligent conduct has caused injury to real property, the gravamen of the cause of action is the injury to the real property. (*McCoy v. Gustafson* (2009) 180 Cal.App.4th 56, 105[.]) In such circumstances, the three-year statute of limitations applies. (*Id.* at 650.)

“Generally speaking, a cause of action accrues at the time when the cause of action is complete with all of its elements.” (*Carrillo v. County of Santa Clara* (2023) 89 Cal.App.5th 227, 234 citing *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.)

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care towards the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.) “In negligence cases, the statute of limitations ordinarily does not commence to run until the damage to the plaintiff occurs.” (*Oakes v. McCarthy Co.* (1968) 267 Cal.App.2d 231, 254.)

As outlined above, New Pipes began installing the plumbing on or about October 25, 2021. Inspections of the work were scheduled for November 30 and December 1, 2021, which resulted in ‘no-show’ failures. On December 8, 2021, an inspection occurred that indicated that “fire-caulking and related wall-construction deficiencies” remained. It is alleged that those deficiencies remained when “New Pipes abandoned the work.” Ultimately, on December 18, 2021, a “Partial Pass/Incomplete” inspection occurred, with a notation that the City should be called for a final inspection when the work was complete.

Plaintiff was damaged on at least October 25, 2021, when New Pipes began its work. This work arguably continued through December 8, 2021, when the SAC alleges that “New Pipes abandoned the

work.” Even if it can be inferred that New Pipes showed up for the December 18 inspection, that is clearly the last date that New Pipes is alleged to have any contact with the Property.

Thus, based on the above, the negligence cause of action accrued by December 18, 2021, at the latest – and more likely on December 8 when it is alleged that New Pipes “abandoned the work.” At that time, all the elements of the negligence claim were present, including the damage to the Property. The SAC makes clear that Plaintiff knew of the damage because he gave written notice of his objection to the work on December 6, 2021.

“Where negligent conduct has caused injury to real property, the gravamen of the cause of action is the injury to the real property. [citation] In such circumstances, the three-year statute of limitations applies.” (Cyr, supra, 206 Cal.App.4th at 650.)

As the negligence cause of action accrued by December 18, 2021, at the latest, Plaintiff was required to file any complaint alleging such a cause of action by December 18, 2024. The initial Complaint was filed on March 13, 2025 – approximately three months after the running of the statute of limitations.

Based on the above, New Pipes’ demurrer to the negligence cause is **SUSTAINED**.

#### **New Claims Asserted Without Leave to Amend – Private Nuisance and Negligent Undertaking**

New Pipes argues that the private nuisance and negligent undertaking causes of action were improperly added without leave to amend.

The initial Complaint was filed on March 13, 2023, and did not include the two above causes of action. The HOA Defendant filed a demurrer and motion to strike on March 18, 2025. New Pipes filed an Answer on April 29, 2025.

On August 25, 2025, the Court sustained the HOA Defendant’s demurrer with leave to amend. The FAC was filed on September 15, 2025. The FAC included the two above causes of action directed toward New Pipes.

Given the filing of the FAC, Defendants needed to file new responsive pleadings. (Code Civ. Proc. § 471.5(a).) New Pipes filed a demurrer and motion to strike as to the FAC. It demurred to each of the causes of action on three grounds: (1) failure to set forth facts sufficient to constitute a cause of action; (2) it was ambiguous as to who the real party in interest is as to the Property; and (3) standing. Notably, New Pipes did **not** demur based on the argument that the causes of action were improperly added without seeking leave to amend.

On March 9, 2026, the Court sustained New Pipes’ demurrer “based on the lack of standing.” The Court also noted that it did “not rule on the other grounds raised by New Pipe” at that time. Plaintiff was given leave to amend. The SAC was filed on March 10, 2026. It again contained the above two causes of action.

**“A party** demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained **shall not demur to any portion of the amended complaint**, cross-complaint, or answer **on grounds that could have been raised by demurrer to the earlier version of the complaint**, cross-complaint, or answer.” (Code Civ. Proc. § 430.41(b) emphasis added.)

New Pipes did not demur to the FAC on the basis that the private nuisance and negligent undertaking causes of action were improperly added when Plaintiff amended the Complaint. As such, New Pipes has waived the ability to demur to the SAC on that basis. Those two causes of action were in the FAC and as such Plaintiff was within his rights to include them in the SAC when he was given leave to

amend.

### **Negligent Undertaking**

A “negligent undertaking claim of liability to third parties requires evidence that: (1) the actor [New Pipes] undertook, gratuitously or for consideration, to render services to another [HOA]; (2) the services rendered were of a kind the actor should have recognized as necessary for the protection of third persons [Plaintiff]; (3) the actor failed to exercise reasonable care in the performance of its undertaking; (4) the failure to exercise reasonable care resulted in physical harm to the third persons; and (5) either (a) the actor's carelessness increased the risk of such harm, or (b) the undertaking was to perform a duty owed by the other to the third persons, or (c) the harm was suffered because of the reliance of the other or the third persons upon the undertaking.” (*Artiglio v. Corning Inc.* (1998) 18 Cal.4th 604, 614.)

“The negligent undertaking theory permits damages for personal injury or property damage, not economic losses.” (*State Ready Mix, Inc. v. Moffatt & Nichol* (2015) 232 Cal.App.4th 1227, 1235.)

New Pipes argues that the SAC fails to allege facts “establishing the second element” of the cause of action, “namely that New Pipes’ installation of plumbing was ‘necessary for the protection of Plaintiff.’” (Demurrer at 13:23-25.)

The SAC alleges that in 2019 active water intrusion into the Property caused damage including mold growth, foundation damage, and drywall deterioration. (¶ 11A.) While Plaintiff made some repairs to the Property, “they did not and could not address the underlying common-area defects....” (*Ibid.*) In July 2019, Axis Construction performed a water-leak investigation and identified 27 issues. (¶ 11B.) The report attributed moisture intrusion to Plaintiff’s window units. (*Ibid.*)

From October 2021 through January-February 2022, the HOA engage a foundation repair contractor to address foundation cracking issues. (¶ 11E(a).) During the repair work, the HOA’s contractor discovered a leaking HOA common-area water pipe running underneath the foundation of Plaintiff’s unit. (*Ibid.*) It had been leaking for many years. (*Ibid.*) “The leaking subsurface HOA pipe is the originating cause of the continuous chain of harm alleged throughout this complaint....” (¶ 11E(d).)

In October 2021, New Pipes “began plumbing work at the Vintner complex under contract with the HOA.” ¶ 12.) That work consisted of “installation of a HOA common-area water main bypass routed through the interior of Plaintiff’s Unit.” (¶ 13.) In other words, the work to be performed was meant to address the leaking water pipe which had previously been causing physical damage to the Property.

The above is sufficient to allege that the work performed by New Pipes was of a kind that New Pipes should have recognized as necessary for the protection of Plaintiff. As such, New Pipes’ demurrer to the negligent undertaking cause of action is **OVERRULED**.

### **Leave to Amend**

“Leave to amend is in general required to be liberally granted [citation], provided there is no statute of limitations concern.” (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) Thus, a court may properly deny a plaintiff leave to amend if the amendment would be futile because the claim is barred by the statute of limitations. (See e.g. *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 231; *Yee v. Mobilehome Park Rental Review Bd.* (1998) 62 Cal.App.4th 1409, 1428-29.)

The Court sustained New Pipes’ demur to the negligence cause of action based on statute of limitations grounds. As outlined above, given the allegations of the SAC, Plaintiff cannot amend his



complaint to get around the statute of limitations issues. As such, amendment would be futile. Leave to amend is **DENIED**.

**Conclusion**

Based on the above, the Court rules that New Pipes' demurrer is:

- 1) **OVERRULED** as to the trespass and nuisance causes of action.
- 2) **SUSTAINED** as to the negligence cause of action.
- 3) **OVERRULED** as to the negligent undertaking cause of action.

Leave to amend is **DENIED**.

**8. 9:00 AM CASE NUMBER: C25-01712**

**CASE NAME: CWS CONSTRUCTION GROUP, INC. VS. AHS CUSTOM METALS, INC.,**

**\*HEARING ON MOTION IN RE: FOR RELEASE OF FUNDS DEPOSITED WITH THE CLERK OF THE COURT  
FILED BY: CWS CONSTRUCTION GROUP, INC.**

**\*TENTATIVE RULING:\***

On April 7, 2026, Plaintiff and Cross-Defendant CWS Construction Group, Inc. ("CWS") filed a Motion for Release of Funds Deposited with the Clerk of the Court (the "Motion for Release of Funds"). The Motion for Release of Funds was set for hearing on August 17, 2026. The motion is unopposed

**Background**

As set forth in the Motion for Release of Funds, the sum of \$7,500.00 (the "Deposited Funds") was deposited with the Court by American Contractors Indemnity Company ("ACIC"). See Notice of Deposit filed May 28, 2026. The Deposited Funds represent payment of ACIC's license bond issued to defendant AHS Custom Metals, Inc. ("AHS").

**Analysis**

The motion is unopposed and no further filings have been made by any party or third party. No other claims have been filed or otherwise presented before the Court with respect to the Deposited Funds.

**Disposition**

The Court finds and rules as follows:

1. Motion for Release of Funds is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

**9. 9:00 AM CASE NUMBER: C25-03333**

**CASE NAME: YESENIA RICO VS. JANE WANG**

**HEARING ON DEMURRER TO: CROSS-COMPLAINT**

**FILED BY:**

**\*TENTATIVE RULING:\***

The Demurrer to Cross-Complaint is **OFF CALENDAR**. Cross-Complainant filed a First Amended Cross-Complaint filed on July 30, 2026.